



FIXED CONTRACT AMOUNT

THIS AGREEMENT, Made as of 1 jan, In the Year Of 2023,

Between the Owner:

Urban Juncture,INC
300 E 51th Street
Chicago,IL 60615

And the Contractor:

Blacktech Solutions Corp
14076 S Lincoln Ave
Dolton,IL 60419

subcontractor
Current Flow
14076 S Lincoln Ave
Dolton,IL 60419

For the Project:

320 E 43th St., Chicago, Illinois

Construction Lender:

ARTICLE 1. CONTRACT DOCUMENTS

1.1. The contract documents consist of this agreement, general conditions, construction

documents, specifications, allowances, finish schedules, construction draw schedule, information disclosure statement, all addenda issued prior to execution of this agreement and all change orders or modifications issued and agreed to by both parties. All documents noted herein shall be provided to the Contractor by the Owner. These contract documents represent the entire agreement of both parties and supersede any prior oral or written agreement.

ARTICLE 2. SCOPE OF WORK

- 2.1. The Owner agrees to purchase, and the Contractor agrees to construct the above-mentioned structure and fixtures attached thereto in the city of Chicago, county of Cook and state of Illinois according to the construction documents, allowances, finish schedules, all addenda, change orders, modifications, references and specifications set forth in the specification booklet. See Exhibit A.

ARTICLE 3. TIME OF COMPLETION

- 3.1. The approximate commencement date of the project shall be Dec 4, 2023, Year The approximate completion date of the project shall be Jan 18, 2024, Year), however any change orders and/or unusual weather might delay or otherwise affect the completion date.

ARTICLE 4. THE CONTRACT PRICE

- 4.1. The purchase price of the project shall be set at the sum of Thirty-Six Thousand, and five hundred Dollars, (\$36,500, subject to additions and deductions pursuant to authorized change orders and allowances. Closing costs shall be paid by the Owner.
- 4.2. The Owner and the Contractor acknowledge that the Owner will pay a lump of 75% Twenty-Seven Thousand, Three Hundred, and Seventy Five Dollars (\$27,375), upon signing this contract and before construction begins as a deposit and part of the purchase price of the project.

ARTICLE 5. PROGRESS PAYMENTS

- 5.1. The Owner will make payments to the contractor pursuant to the attached construction draw schedule as work required by said schedule is satisfactorily completed. The owner shall make draw payments to the contractor within (1) days after the request by

contractor. Should the owner fail to make payment, the contractor may charge a penalty of (0%) annually upon the unpaid amount until paid.

- 5.2. 15-2nd-3rd Payment due upon Rough inspection
payment due wiring and termination
10%-final payment final inspection
- 5.3. If payment is not received by the Contractor within 5 days after delivery of payment demand for work satisfactorily completed, contractor shall have the right to stop work or terminate the contract at his option. Termination by Contractor under the provisions of this paragraph shall not relieve the Owner of the obligations of payments to Contractor for that part of the work performed prior to such termination. Termination by Owner under the provisions of this paragraph shall not relieve the Owner of the obligations of payments to Contractor for that part of the work performed prior to such termination.

ARTICLE 6. DUTIES OF THE CONTRACTOR

- 6.1. All work shall be in accordance to the provisions of the plans and specifications. All systems shall be in good working order.
- 6.2. All work shall be completed in a workman like manner, and shall comply with all applicable national, state and local building codes and laws.
- 6.3. All work shall be performed by licensed individuals to perform their said work, as outlined by law.
- 6.4. Contractor shall obtain all permits necessary for the work to be completed.
- 6.5. Contractor shall remove all construction debris and leave the project in a broom clean condition.

- 6.6. Upon satisfactory payment being made for any portion of the work performed, Contractor shall furnish a full and unconditional release from any claim or mechanics' lien for that portion of the work for which payment has been made.

ARTICLE 7. OWNER

- 7.1. The Owner shall communicate with subcontractors only through the Contractor.
- 7.2. The Owner will not assume any liability or responsibility, nor have control over or charge of construction means, methods, techniques, sequences, procedures, or for safety precautions and programs in connection with the project, since these are solely the Contractor's responsibility.

ARTICLE 8. CHANGE ORDERS AND FINISH SCHEDULES

- 8.1. A Change Order is any change to the original plans and/or specifications. All change orders need to be agreed upon in writing, including cost, additional time considerations, approximate dates when the work will begin and be completed, a legal description of the location where the work will be done and signed by both parties. 50% of the cost of each change order will be paid prior to the change, with the final 50% paid upon completion of the change order. A 12% fee shall be added to all change orders and overages in excess of initial allowances. Additional time needed to complete change orders shall be taken into consideration in the project completion date.

- 8.2. Completed Finish Selection Schedules shall be submitted to the Contractor as follows:

8.2.1. NA

8.2.2. NA

- 8.3. Any delays or changes in finish selection schedules will delay the projected completion date.

ARTICLE 9. INSURANCE

- 9.1. The Owner will keep in force a Builder's Risk Insurance Policy on the said property to protect both owner's and contractor's interests until construction is completed.
- 9.2. The Owner will purchase and maintain property insurance to the full and insurable value of the project, in case of a fire, vandalism, malicious mischief or other instances that may occur.
- 9.3. The Contractor shall purchase and maintain needed Workman's Compensation and Liability insurance coverage as required by law and deemed necessary for his own protection.

ARTICLE 10. GENERAL PROVISIONS

- 10.1. If conditions are encountered at the construction site which are subsurface or otherwise concealed physical conditions or unknown physical conditions of an unusual nature, which differ naturally from those ordinarily found to exist and generally recognized as inherent in construction activities, the Owner will promptly investigate such conditions and, if they differ materially and cause an increase or decrease in the Contractor's cost of, and/or time required for, performance of any part of the work, will negotiate with the Contractor an equitable adjustment in the contract sum, contract time or both.

ARTICLE 11. HAZARDOUS MATERIALS, WASTE AND ASBESTOS

11.1. N/A

ARTICLE 12. ARBITRATION OF DISPUTES

12.1. Any controversy or claim arising out of or relating to this contract, or the breach thereof, shall be settled by arbitration administered by the American Arbitration Association under its Construction Industry Arbitration Rules, and judgment on the award rendered by the arbitrator(s) may be entered in any court having jurisdiction thereof.

ARTICLE 13. WARRANTY

13.1. At the completion of this project, Contractor shall execute an instrument to Owner warranting the project for one year (365 +1 day)(1) against defects in workmanship or materials utilized. The manufacturer's warranty will prevail. No legal action of any kind relating to the project, project performance or this contract shall be initiated by either party against the other party after (2) beyond the completion of the project or cessation of work.

ARTICLE 14. TERMINATION OF THE CONTRACT

14.1. Should the Owner or Contractor fail to carry out this contract, with all of its provisions, the following options and stipulations shall apply:

14.1.1. If the Owner or the Contractor shall default on the contract, the non-defaulting party may declare the contract is in default and proceed against the defaulting party for the recovery of all damages incurred as a result of said breach of contract, including a reasonable attorney's fee. In the case of a defaulting

Owner, the Earnest money herein mentioned shall be applied to the legally ascertained damages.

14.1.2. In the event of a default by the Owner or Contractor, the non-defaulting party may state his intention to comply with the contract and proceed for specific performance.

14.1.3. In the case of a defaulting Owner, the Contractor may accept, at his option the earnest money as shown herein as liquidated damages, should earnest money not cover the expenses to date, the Contractor may make claim to the Owner for all work executed and for proven loss with respect to equipment, materials, tools, construction equipment and machinery, including reasonable overhead, profit and damages applicable to the property less the earnest money.

ARTICLE 15. ATTORNEY FEES

15.1. In the event of any arbitration or litigation relating to the project, project performance or this contract, the prevailing party shall be entitled to reasonable attorney fees, costs and expenses.

ARTICLE 16. ACCEPTANCE AND OCCUPANCY

16.1. Upon completion, the project shall be inspected by the Owner and the Contractor, and any repairs necessary to comply with the contract documents shall be made by the Contractor.

16.2. The Owner shall not occupy the property until final payment has been received by the Contractor and a Certificate of Occupancy has been obtained.

16.3. Occupancy of the project by the Owner in violation of Article 16.2, shall constitute unconditional acceptance of the project and a waiver of any defects or uncompleted work.



WITNESS our hand and seal on _____ this _____ day of 2023 .

Contractor Signature
Blacktech Solutions

Owner Signature
Urban Juncture,INC

Exhibit A.

Interior

Electrical

- ITemp and Permanent Electrical Service from COMED. Temp
- and permanent service anticipated.
- Installation of 600amp distribution and panels
 - Installation of Conduit, Wiring and Boxes
 - Installation of Disconnect service to Mechanical Equipment
 - Installation of lighting fixture per plans and Lighting schedule
 - Installation of Emergency Lighting Per plan and specifications
 - Installation of Electrical Grounding Circuitry per NEC/CEC Code

3 REFERENCES

Sustainable options for Urban living Cynthia Stewart
(773) 837-5948

GBG, INC
Micheal Charles Hilson
(708) 372-7190

Ervin Construction
Dwayne Dunlap
(312)824-9885

